ARSITON HOLDINGS LIMITED

versus

THE MINING COMMISSIONER MASHONALAND WEST PROVINCE N. O

And

THE SECRETARY FOR MINES AND MINING DEVELOPMENT N. O

And

MINISTER OF MINES AND MINING DEVELOPMENT N. O

And

THE ENVIRONMENTAL MANAGEMENT AGENCY

And

KUNDAI MINING SYNDICATE

HIGH COURT OF ZIMBABWE

MUZOFA J

CHINHOYI, 5 February, 5&13 March 2026

C. Mawunga, for the applicant

C. Chitekuteku, for the 1st, 2nd, and 3rd respondents

No appearance for the 4th respondent

D. Mudadirwa, for the 5th respondent.

OPPOSED APPLICATION

Muzofa J [1] The applicant seeks a declarator and consequential relief that the 5th respondent's certificates of registration in respect of claims number 17311 and 17312 be declared nullity, cancellation of the said certificates without further ado and costs on a higher scale.

[2] The applicant is an agricultural enterprise, operating at Kent Estates, Norton.

[3] The 1st, 2nd, 3rd respondents are cited in their official capacities as the administrative authorities whose responsibility is to issue mining licenses, permits and general administration of the Mines and Minerals Act [Chapter 21:05] (the Act).

[4] The 4th respondent is a body corporate responsible for the administration of the Environmental Management Act [Chapter 20:07] (EMA Act) and protection of the

environment. It is a body bestowed with a fundamental duty for the nation's posterity on environmental issues.

[5] The 5th respondent is a mining syndicate registered in terms of the laws of Zimbabwe. The real dispute is between the applicant, the farmer and the 5th respondent the miner.

Factual Background

[6] All the facts giving rise to the dispute are not in dispute. The applicant is the lawful holder of an offer letter over Kent Estates. The 5th respondent was issued Certificates of Registration 17311 and 17312 (Kent 1 and Kent 2) whose location is within Kent Estates. The Certificates of registration were issued before acquisition of an Environmental Impact Assessment Certificate (EIAC)

[7] According to *Mr Mudadirwa* for the 5th respondent, when the 5th respondent was issued with the Certificates of Registration, it did not commence mining. The actual mining activities commenced after the (EIAC) was issued. This was not disputed.

[8] In its founding affidavit the applicant also raised issues on the proximity of the mining locations to the farming activities that they are within prohibited distances in terms of Section 31 of the Act. When parties initially appeared, I issued a case management order for the administrative authority, the 1st respondent to conduct a ground survey on the proximity of the mining locations to the farm activities.

[9] In such cases where allegations are made in respect of what is on the ground, it is highly undesirable for parties to appear before the Court without first resorting to the administrative authority, the 1st respondent for a verification exercise. The court has no capacity and indeed it is not its fort to decide on distances of farm activities from the mining location. The 1st respondent must be actively engaged to resolve such issues. The ground survey has the capacity to settle most disputes presented before courts as happened in this case.

[10] Following the ground survey, a report was filed which showed that Kent 1 falls fowl of Section 31 of the Act. Kent 2 had no issues. *Mr Mudadirwa*, immediately made a concession and rightly so, that the order sought against Kent 1 may be issued. With that concession this judgement on the merits deals with Kent 2 only.

The application

[11] The applicant avers that it satisfied the requirements in Section 14 of the High Court Act. It has a real and substantial interest and the issue before the court is not academic[1]. It is a lawful holder of land within which the 5th respondent was issued with the Mining Certificate. It ought to protect its occupation should there be threats of disturbances in its business which disturbance is unlawful.

[12] The issue for determination is live and not academic. The 5th respondent's Certificate of Registration was irregularly issued it must be vacated. It relied on the line of cases where the validity of a Certificate of Registration issued before an EIA Certificate was addressed[2].The courts have pronounced that an EIA Certificate is a *sine qua non* for the grant of a prospecting licence and indeed a mining licence.

The 1st, 2nd, 3rd Respondent's Opposition

[13] The respondents being administrative authorities took a point on interpretation of s97 and s100 of the EMA Act. Despite the fact that the Supreme Court has already pronounced the position of the law in *Serepta Resources* (supra) and confirmed its position in the *Nyarota* (supra) *Mr Chitekuteku* passionately addressed the court to adopt a purposive approach to interpretation as propounded in the *Chihava*[3] case. In his opinion the literal approach in interpreting the provisions will result in an absurdity.

[14] Nothing turns on the reference to the *Chihava* case, it sets out the law on interpretation. What escaped *Mr Chitekuteku* is that the two sections have already been interpreted in the *Serepta* case (supra) and the same position confirmed in the *Nyarota* case. Both cases addressed situations similar to the one before the Court. Both cases are Supreme Court cases. The doctrine of *stare decis* precludes this court from interpreting the two sections differently. Lower courts are bound by decisions of superior courts[4].

[15] On another point, the respondents argued that at the time the 5th respondent commenced mining it had already obtained the EIA Certificate. The EMA Act envisaged that some uncouth

[1] *Deshan (Pvt) Ltd V PMD Mat South 2017 (1) ZLR 75 (H) Johnsen V AFC 1995(1) ZLR 65.*

[2] Serepta Resources (Pvt) ltd v Ariston Holdings and Others SC 40/25, Sandawana Mines (Pvt) Ltd v The Mining Commissioner Midlands NO and Ors HH*539-23* , Nyarota.

[3] Chihava and ORS V The Provincial Magistrate Francis Mapfumo NO and Another CCZ 2015/6

[4] *Denhere* v *Denhere and Another* CCZ 9/19

miners could commence mining without the Certificate and provided a penalty under s97(2) of the EMA Act.

[16] The submissions went on to highlight the difficulties that arise from getting an EIA Certificate before the Certificate of Registration. This issue need not detain the Court, the same argument was raised in the *Nyarota* case and at paragraph 16 the Court dismissed it as follows,

> 'Before delving further into the intricacies of this matter, it is important to point out that Mr *Garwe's* argument about what happens on the ground is not plausible. It is a well-known principle that the law is law, whether good or bad. It is not in dispute that when a law is codified, the courts do not look at what is practicable, but rather what the law says and interpret it as it is. In fact, despite articulating the correct legal position that an environment impact assessment certificate had to be obtained first. Mr *Garwe* sought to justify the anomalous situation by stressing that what happened was more practical. This court will not be detained by the submission which seeks to justify noncompliance with the law.'

[17] I may comment on the 1st, 2nd and 3rd respondents' opposition. They are cited in their official capacity. They are nominal respondents to clarify certain administrative issues or to give effect to the Court order where necessary. It is undesirable for the administrative authority to take sides with litigants as in this case where they are fighting in the 5th respondent's corner. It must not pitch camp with any one of the ligants. Its role is to state facts in a colourless manner to assist the court to come to a judicious decision[5]. As matters stand the legal representative threw all caution to the wind and even made submissions contrary to what the law is as interpreted by the Courts.

5th respondent's opposition

[18] Initially the 5th respondent raised factual issues on the distances of the mining location to the farming activities. The points taken were resolved by the ground survey which culminated in the concession in respect of Kent 1.

[19] On the substantive issue, the points taken in opposition are no different from the 1st,2nd and 3rd respondents' opposition. That s 97 and s100 of the EMA Act do not require an EIA certificate before the Certificate of Registration is issued. In any event, so the submissions went on, the 5th respondent has since acquired the certificate. It has regularized therefore the certificates must not be cancelled. The legislature envisaged that some miners may implement

[5] TM Supermarkets v Chimhini SC 14/19

projects in the absence of the EIA certificate and it provided a penalty under Section 97(2) of the EMA Act.

[20] It was argued that the cases relied upon by the applicant, are distinguishable in that at the time of litigation the miners had not regularised. In this case the 5th respondent has since regularized. It now has an EIA Certificate. The applicant has failed to establish the requirements of a declaratur. The application must be dismissed.

Issues for determination

1. Whether the applicant satisfied the requirements of declaratur and consequential relief.

2. Whether the Court should exercise its discretion in favour of the applicant.

Whether the requirements were satisfied.

[21] A declaratur is discretionary remedy provided in s14 of the High Court [Chapter 7:06]. The applicant must show that she /he/it has an interest in the subject matter which may be affected by the order sought. The Court after considering the circumstances must decide whether it should exercise its discretion in favour of the applicant or not. In the *Deshan* case (supra) cited for the applicant the requirements for a declaratur were succinctly set out as follows,

> "*The remedy which the applicant seeks is one provided for in s14 of the High Court Act [Chapter 7:06]. The section provides that this court may, at the instance of any interested party, inquire into and determine any existing, future or contingent right or obligation. It has been stated, in interpreting that provision, that it is a condition precedent to the grant of a declaratory order that the applicant must have a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. See Munn Publishing (Pvt) Ltd v ZBC 1994 (1) ZLR 337 (S) 343G; 344 A –E; As the court will not decide abstract, academic or hypothetical questions unrelated to such an interest, the interest must relate to an existing, future or contingent right. See Anglo Transvaal Collieries Ltd v SA Mutual Life Assurance Soc 1977 (3) SA 631 (T) 635 G-H; Munn Publishing (Pvt) Ltd v ZBC, supra. The other requirement for a declaratory order is that the court must decide whether or not the case in question is one in which it should properly exercise its discretion as provided for in s14. The court's discretion will be exercised where, despite the fact that no consequential relief is sought, justice or convenience demands that a declaration be made as to the existence of or the nature of a legal right claimed by the applicant"*

[22] It seems whether the applicant has a real and substantial interest in the subject matter is not an issue, it is admitted. None of the respondents controverted the applicant's position on the issue. It is trite that where an allegation is not specifically controverted it is taken to have been admitted. See *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs & Excise and Others* 1993 (2) ZLR 121 SC. There is no doubt that the applicant has a real and substantial interest. It is the farmer that was issued with lawful authority over Kent Estate prior to the 5th respondent's title. Undoubtedly the 5th respondent's occupation will interfere with applicant's right. Nothing detracts the applicant's right to protect its interest by being vigilant that those who take occupation must do so lawfully.

[23] The dispute is not academic; it remains live as the 5th respondent has taken occupation and erected some buildings. The issue for resolution is whether the Certificate was lawfully issued.

[24] The applicant posits that the issue before this Court was settled in the two cases of the Supreme Court, *Serepta Resources* and *Nyarota (supra)*. The respondents believe otherwise. They submitted that the two cases are distinguishable. My first task is to interrogate what the respondents deem distinguishes this matter.

[25] Firstly, they submitted that at the time of litigation in the two cases the miners had not regularised by obtaining the Certificates. In this case the 5th respondent did not commence mining and has since obtained the Certificate. The submission is factually incorrect. In the *Serepta* case the miner had been issued with the Certificate. In the *Nyarota* case the miner had applied for the Certificate. In both cases the Courts found the regularisation a non-event. The respondents missed the point that the cause of action is as at the time of issuance, that there was no EIA certificate. The Registration Certificate was a nullity. Thus, no amount of regularisation could breathe life to the Certificate. In fact, the 5th respondent's activities at Kent were not lawful, it prospected without an EIA certificate as envisaged in s97 (1) of the EMA Act and obtained the Certificate in the absence of an EIA certificate.

[26] The applicant established that it has a direct and substantial interest in the subject matter under threat. The 1st respondent has issued a certificate of registration contrary to the law. The 5th respondent has taken occupation on the strength of that Certificate thereby unlawfully interfering with the applicant's rights at Kent Estates.

Whether the Court should exercise its discretion in favour of the applicant.

[27] The respondents have argued that cancellation is not the appropriate remedy considering the provisions of s97(2) of the EMA Act. For completeness I reproduce s97,

> **"97 Projects for which environmental impact assessment required**
> (1) The projects listed in the First Schedule are projects which must not be implemented unless in each case, subject to this Part
> (*a*) the Director-General has issued a certificate in respect of the project in terms of section *one hundred*, following the submission of an environmental impact assessment report in terms of section *ninety-nine*;
> and
> (*b*) the certificate remains valid; and
> (*c*) any conditions imposed by the Director-General in regard to the issue of the certificate are complied with.
> (2) Subject to subsection (4) any person who knowingly implements a project in contravention of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level twelve or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment."

[28] Section 97 proscribes implementation of projects listed in the First Schedule to the EMA Act. The central issue is the implementation. The applicant's case is that the 1st respondent issued the Certificate of Registration in the absence of an EIA certificate. The penalty does not apply to the circumstances of this case.

[29] Despite the concerted efforts to distinguish the *Serepta*, *Nyarota*, *Sandawana* cases, the exercise was in futility. What emerges from our jurisprudence on the issuance of mining certificates and the perceived conflict with the EMA Act (sections 97 and 100 is as follows:

1. All the legal instruments regulating the operation of mining activities must be read together in a complimentary manner. This includes the Mines and Minerals Act and the Environment Management Act. See p 18 of *Serepta* case (supra).
2. The Environmental Management Act takes precedence over the Mines and Minerals Act where there is a perceived conflict. See para 22 of *Nyarota* case (supra) and s 3 of the EMA Act.
3. The EMA Act (s 97 and s 100) thereof has introduced additional requirements for acquisition of Registration Certificates to those listed in s 45 of the Mines and Minerals Act.

4. An Environmental Impact Assessment Certificate (EIAC) is a pre-requisite to the registration of a mining claim (the certificate of registration).

[30] It does not matter that at the time of litigation the miner had regularized, the approach by the Courts is that, the Certificate of Registration was a nullity and Courts cannot sanitize that which was issued against the law. A nullity remains a nullity. The Certificate of Registration must sit on the EIA Certificate. In the absence of an EIA Certificate there is no valid registration as such the issued Certificate crushes as stated in the celebrated case *of Macfoy* v *United Africa Co* (1961) 3 ALL ER 1169. Courts exist to interpret the law and should not be complicit where processes are done against the law.

In the *Nyarota* case the Court conclusively said the following on the issue at para 32 of the judgment,

> "Further, the appellant argues that the matter had become moot because it had already been awarded the certificate of registration and begun mining operations. However, this is not so. In the case of *Serepta Resources (supra*), despite mining operations having begun and the appellant having obtained the environmental impact assessment certificate after the certificate of registration, the Court still found that the environmental impact assessment certificate was a pre-requisite to a certificate of registration, thus the certificates of registration obtained before the environmental impact assessment certificate were null and void."

[31] It may be persuasive that that at the time of litigation the 5th respondent had regularized but the Court is not inclined to accept the submission. The germane issue is that, there was nothing in the first place to regularize. There was no Registration Certificate in terms of the law.

[32] It is my considered view that the applicant has ably satisfied the requirements of a declaratur and consequential relief as sought.

Costs

[33] The applicant requested for costs on a higher scale. The respondents seem to have overlooked the request; there was no response on the issue. In my view, despite that this case was predicated on issues already decided it appears the resultant consequences would naturally require opposition as mining activities are generally high investment enterprises. The 5th respondent was entitled to oppose the application. Nothing out of the ordinary was done by the respondents to attract punitive costs.

Disposition

[34] The facts established that the 1st respondent issued the 5th respondent with the Certificate of Registration before the 5th respondent obtained an EIA Certificate. The EMA Act as read with s45 of the Act makes it a requirement that an EIA Certificate be issued first. The Registration certificate was irregularly issued therefore it must be cancelled.

Accordingly, the following order is issued.

1. The application for a declaratory order and consequential relief be and is hereby granted.
2. The certificates of registration of mining claim number 17311 and 17312 registered in the name of the 5th Respondent issued by the 1st Respondent on the 24th of June 2021, be and are hereby declared null and void and of no force.
3. The 1st Respondent be and is hereby ordered to forthwith cancel and remove from his register the certificates of registration number 17311 and 17312, registered in the name of the 5th Respondent.
4. The 1st and 5th Respondents be and are hereby ordered to pay costs of suit on the legal practitioner and client scale.

Maunga and Maanda Associates, the applicant's legal practitioners
Civil Division of the Attorney General's Office, the 1st, 2nd & 4th respondent's legal practitioners
Gijima, Gashirai & Gatawa Attorneys, the 5th respondent's legal practitioners